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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

(Criminal Jurisdiction)

RESERVED ON:19.08.2026

PRONOUNCED ON: 28.08.2026

PRESENT

The Hon`ble Mr.Justice K.MURALI SHANKAR

CRL OP(MD). No.15373 of 2026

P.Ramachandran ... Petitioner/
Accused No.6

Vs

The Union of India
represented by
The Deputy Superintendent of Police,
CBI, SC-III,
New Delhi.
(RC-08(S)/2025/CBI/SC-III/New Delhi. ... Respondent/
Complainant

For Petitioner : Mr.R.Gandhi
Senior Counsel
for R.Ramanujam
Advocate.

For Respondent : Mr.N.Mohideen Basha
Special Public Prosecutor for CBI

: Mr.Henri Patrick Tiphange
for Intervenor

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PETITION FOR BAIL Under Section 483 of B.N.S.S.

PRAYER :-

For Bail in RC-08(S)/2025/CBI/SC-III/New Delhi on the file of the Respondent Police.

ORDER : The Court made the following order :-

The petitioner/A.6, who was arrested and remanded to judicial custody on 17.10.2025 for the offences punishable under Sections 127(2), 140(4), 191(2) & 103(1) r/w 190 BNS in RC-08(S)/2025/CBI/SC-III/New Delhi on the file of the respondent police, seeks bail.

2. The case of the prosecution is that on 27.06.2025, one Nigitha along with her aged mother visited Madappuram Badrakali Amman Temple for dharshan, that the security guard in the said temple viz., Ajithkumar assisted her in parking her vehicle, that on returning from dharsan, the said Nigitha found that her 9.5 soverigns of gold jewelry and

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Rs.2,500/- cash kept inside the bag on the rear side of the car were missing and she lodged a complaint of theft at the temple office, following which Ajithkumar was taken to Thiruppuvanam police station and transported him along with six others, detained at different points of time to numerous locations in a police Tempo Traveller Van bearing Registration No.TN-63-G-0491, which vehicle was through out driven by the petitioner/Accused No.6 and that during the said illegal custody, almost 24 hours, the said Ajithkumar was subjected to repeated and brutal torture with sticks, pipes and rods etc and as a result of which, he died on the evening of 28.06.2025 near the cow shed behind the Madapuram Kaliamman temple office.

3. It is not in dispute that initially Thiruppuvanam police registered a F.I.R., in Cr.No. 302 of 2025 on 01.07.2025 and arrested the accused 1 to 5. Subsequently, the case was transferred to CBI and the case was re-registered as (RC-08(S)/2025/CBI/SC-III/New Delhi under Section 103

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of BNS on 12.07.2025 and investigated the matter. The CBI, upon completion of investigation, filed the charge sheet on 20.08.2025.

4. It is pertinent to mention that the present petitioner/6th accused was charge sheeted only for the offence of illegal confinement under Section 61(2) r/w 127(2) BNS. The learned chief Judicial Magistrate, after taking the case on file, issued summons to the accused. The petitioner/6th accused upon receipt of the summons, entered into appearance and executed a bond under Section 91 of BNSS on 23.08.2025. Thereafter, the learned Chief Judicial Magistrate has committed the case to the Principal Sessions Court. Upon taking the case on file in S.C.No.709 of 2025, the same was made over to V Additional District and Sessions Court, Madurai. The petitioner thereafter appeared before the Additional District and Sessions Court on 17.10.2025 and the learned Sessions Judge passed an order remanding the petitioner/6th accused to judicial

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custody under Section 346 BNSS and continues to remain in judicial custody till now.

5. The petitioner/sixth accused filed a petition seeking bail before the trial Court and the learned trial Judge, vide order dated 03.01.2026 dismissed the same. Thereafter the petitioner/6th accused filed the present petition seeking bail under Section 483 of BNSS.

6. It is also not in dispute that the CBI subsequently filed a supplementary charge sheet on 11.12.2025 against four additional accused viz., the then Deputy Superintendent of Police – Shanmugasundaram, the then Station House Officer – S.P.Ramesh Kumar, the then Sub-Inspector of Police – Sivakumar and the then Head Constable – Ilayaraja (accused 7 to 10) for their alleged supervisory role, negligence and fabrication of records under Section 61(2) r/w 127(2), 238 and 337 of BNS before the Court of the Chief Judicial Magistrate. The additional accused 7 to 10, upon receipt of the summons appeared

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before the learned Chief Judicial Magistrate and executed bonds under Section 91 of BNSS. Thereafter, apprehending that they might be remanded to judicial custody, the additional accused filed applications seeking anticipatory bail in Crl.O.P.(MD)Nos.4859, 5406, 5191 and 5192 of 2026. The learned Judge of this Court observing that the additional accused had already executed bonds under Section 91 of BNSS and that the same was sufficient for their appearance before the committal Court hold that there was no need or necessity for them to seek anticipatory bail and directed the learned Chief Judicial Magistrate not to remand the additional accused to judicial custody while committing the case to the Sessions Court. Subsequently, the case as against the additional accused 7 to 10 was committed to the Sessions Court and now all the accused are facing trial before the learned V Additional District and Sessions Judge, Madurai.

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7. Heard the learned Senior Counsel for the petitioner and the learned Special Public Prosecutor of CBI and the learned Counsel for the intervenor.

8. The learned Senior Counsel for the petitioner would contend that the petitioner worked as a Constable in Thiruppuvanam police station at the relevant point of time and was serving in Law and Order branch and has no nexus with the special team headed by the Deputy Superintendent of Police, that the petitioner has co-operated for the enquiry conducted by the learned IV Additional District Judge, Madurai, in pursuance of the directions of this Court to unearth the truth, that the respondent police has never chosen to arrest the petitioner or made any attempt to remand him, that the petitioner upon receipt of the summons from the Court of the Chief Judicial Magistrate, had appeared and executed a bond under Section 91 of BNSS as directed by the learned Chief Judicial Magistrate, that the petitioner had appeared before the Court without fail and co-operated for the committtal and further

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proceedings, that the petitioner will not abscond or evade due process of law, that the petitioner was just a driver of Tempo Traveler Van and not involved in any offence as alleged by the prosecution and that the petitioner may be enlarged on bail pending the trial of the case.

9. The learned Senior Counsel would further contend that the accused 7 to 10 (additional accused as per the supplementary charge sheet) were not arrested during the investigation and appeared on summons before the committal Court and executed bonds under Section 91 of BNSS, that the said accused apprehending remand to the judicial custody, similar to that of the petitioner, filed anticipatory bail in Crl.O.P.(MD)Nos.4859, 5406, 5191 of 2026 before this Court and the same was disposed of holding that they need not be remanded and that therefore, the principle of parity will equally apply to the petitioner like that of the accused 7 to 10 and that therefore, the petitioner may be released on bail.

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10. The learned Special Public Prosecutor appearing for the CBI and the learned Counsel for the intervenor – defacto complainant would submit that the CBI, after investigation, has established that the petitioner was a member of the Special Crime Team, headed by the Deputy Superintendent of Police, Manamadurai Sub-Division and was during the period of illegal confinement and torture, the petitioner, designated driver of the police tempo traveler van, was present and he drove the deceased Ajithkumar and other detainees to and between the various locations of torture remained present with the vehicle each such a location, while the deceased was being assaulted and was well aware that the deceased was being unlawful confinement and tortured by the co-accused, that the execution of bond under Section 91 of BNSS and co-operation for the committal proceedings are matters of record and regarding any manner advance the petitioner's case for bail on merits, that the additional accused were never physically present at any stage during the illegal torture of the accused, but the petitioner was the

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driver of the vehicle used to transport and illegally confined the deceased and was personally and physically present and that since the role and findings as against the additional accused 7 to 10are therefore entirely different footings, the principle of parity is not applicable to the case on hand, that the learned Sessions Judge, considering the entire materials available on record, has rightly dismissed the petitioner's bail application and that taking note of the gravity of the offences alleged and the possibility of influencing or intimidating the witnesses and tampering of the evidence, the petitioner is not entitled to be enlarged on bail.

11. The learned Senior Counsel for the petitioner would mainly contend that the petitioner/6th accused was not at all arrested during the course of investigation, that the respondent CBI, after completing the investigation, filed a final report against the petitioner for bailable offences, that the committal Court had only obtained the bond under Section 91 of BNSS from the petitioner and that

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the learned Sessions Judge committed a grave error in remanding the petitioner to judicial custody after committal.

12. The learned Senior Counsel placed reliance upon the judgment of the Hon'ble Supreme Court in ***Satender Kumar Antil Vs. Central Bureau of Investigation and another*** reported in ***(2022)10 SCC 51,*** and the relevant passage is extracted hereunder:

> "89. We may clarify on one aspect which is on the interpretation of Section 170 of the Code. Our discussion made for the other offences would apply to these cases also. To clarify this position, we may hold that if an accused is already under incarceration, then the same would continue, and therefore, it is needless to say that the provision of the Special Act would get applied thereafter. It is only in a case where the accused is either not arrested consciously by the prosecution or arrested and enlarged on bail, there is no need for further arrest at the instance of the court. Similarly, we would also add that the existence of a pari materia or a similar provision like Section 167(2) of the Code available under the Special Act would have the

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same effect entitling the accused for a default bail. Even here the court will have to consider the satisfaction under Section 440 of the Code."

13. Referring to the above decision, the learned Senior Counsel for the petitioner would submit that when the Investigating Agency itself had not chosen to arrest the petitioner during investigation, there was absolutely no need or necessity to take him into custody, after filing of the final report.

14. At this juncture, it is also pertinent to refer to the earlier judgment of the Hon'ble Supreme Court in ***Satender Kumar Antil Vs. Central Bureau of Investigation and another*** reported in ***(2021)10 SCC 773,*** wherein the Hon'ble Apex Court categorised the offences into four types and category B relates to offences punishable with death, imprisonment for life, or imprisonment for more than 7 years. The Hon'ble Supreme Court for the offences falling under Category B and D has indicated that upon appearance

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of the accused before the court pursuant to the process issued, bail application has to be considered and decided on merits and directed the Trial Courts and the High Courts to keep in mind the guidelines issued therein, while considering bail applications.

15. A combined reading of the above decisions would make it clear that the mere fact that an accused was not arrested during the course of investigation does not, by itself, confer an indefeasible right to be enlarged on bail, irrespective of the nature and gravity of the accusation and the materials collected during investigation. The principle that an accused, who was consciously not arrested during investigation, need not be arrested merely because the final report has been filed cannot be equated with an automatic entitlement to bail in cases where the application for bail is required to be considered on merits.

16. The learned Senior Counsel for the petitioner also placed reliance upon the judgment of

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the Hon'ble Supreme Court in ***Musheer Alam Vs. State of Uttar Pradesh and another*** reported in ***2025 SCC Online SC 116*** wherein the prosecution related to an offences under the Prevention of Corruption of Act for possession of assets disproportionate to the known sources of income of the accused In that case, the accused had not been arrested during the course of investigation and after taking cognizance by the trial Court, the accused was arrested formally and when the same was challenged, the Hon'ble Apex Court deprecated the practice of effecting the arrest after filing of the final report and taking cognizance and observed that if the Investigating Officer had considered interrogation of the accused necessary, he could have arrested him during the course of investigation itself. No doubt, it is settled law that mere filing of the final report cannot, by itself, a ground to take into custody of an accused, who was not arrested during the course of investigation.

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17. It is pertinent to note that the principles laid down in ***Satender Kumar Antil Vs. Central Bureau of Investigation and another*** reported in ***(2022)10 SCC 51,***and reported in***(2021)10 SCC 773*** and ***Musheer Alam Vs. State of Uttar Pradesh and another*** reported in ***2025 SCC Online SC 116*** cited supra are intended to prevent unnecessary or mechanical arrest, after completion of the investigation. In the present case also, admittedly, the investigation has already been completed, charge sheet as well as the supplementary charge sheet came to be filed and therefore, the custodial interrogation of the petitioner may no longer be required, but the requirement of custodial interrogation is only one of the considerations for deciding the bail application and the Court is also required to consider the nature and gravity of the accusation, the role attributed to the accused, the materials available on record and the possibility of the accused influencing or intimidating the witnesses or tampering with the evidence or otherwise interfering with the fair conduct of the trial.

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18. As already pointed out, no doubt, the petitioner was charge sheeted only for the offence of illegal confinement under Section 61(2) r/w 127(2) of BNS, but the learned Sessions Judge, considering the entire materials available on record and taking note of the statement given by one witness Saktheeshwaran, Son of Murugesan recorded before the learned IV Additional District Judge, Madurai, during his enquiry, in pursuance of the directions of this Court and also the statement of the said witness Saktheeshwaran recorded by the Inspector of Police, CBI, Chennai to the effect that the petitioner was involved in the illegal brutal attack on the deceased along with other accused and as he was not on bail, proceeded to remand the petitioner to judicial custody under Section 346 of BNSS for the offences under Sections 127(2), 140(4), 191(2) and 103(1) r/w 190 of BNS.

19. Admittedly, the petitioner has not challenged the said order of remand and the said

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order continues to remain in force. Hence, in the present bail proceedings, this Court is not called upon to examine the legality or correctness of the remand order passed by the trial Court and the petitioner's entitlement to bail has to be considered as per the dictum laid in ***Satender Kumar Antil's case*** referred above on merits.

20. Considering the above, it is evident that the petitioner is not said to be implicated merely on account of his presence as the driver of the police team vehicle. As already pointed out, the statement of the prosecution witness, as rightly observed by the learned Sessions Judge, prima facie attributes to the petitioner and the active role in assaulting the deceased along with other accused 1 to 5. Moreover, the bail applications filed by A1 to A5 before the learned Sessions Judge were dismissed and, subsequently, the bail applications filed by them before this Court also came to be dismissed.

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21. At this juncture, it is necessary to refer the judgment of the Hon'ble Supreme Court in ***Ajay Kumar Yadav Vs. State of U.P., and others in Crl.A.No.1515 of 2025, dated 12.03.2025***, wherein the Hon'ble Apex Court has categorised the case involving custodial death as a very serious and grave offence and required the Courts to adopt strict approach while considering the case for bail in a custodial death at the hands of police personnel and the relevant portions are extracted hereunder:

> *" 5. It is a fact that, in ordinary circumstances we ought not to invoke our jurisdiction under Article 136 of the Constitution of India to invalidate an order granting bail to an accused. But this criteria, while dealing with the question of granting bail, would not apply in a case of custodial death, where police officials are arraigned as accused. Such alleged offences are of grave and serious nature. The role of the Court in dealing with the plea for bail in offences involving police officials has been explained by this court in the case of State of Jharkhand v. Sandeep Kumar (2024 INSC 179), which was authored by one of us*

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(Sanjay Kumar J.). this was a case in which anticipatory bail was granted to a police official accused of. inter-alia, interpolations in an FIR. It has been held in this decision :-

"9. In the light of these serious allegations made against no less than a senior police officer, an essential cog in the machinery of law enforcement, the High Court ought not to have taken a liberal view in the matter for the mere asking. Considering the position held by the respondent, even if he was suspended from service and the chargesheet had already been filed against him, the possibility of his tampering with the witnesses and the evidence was sufficiently high. ....

7. So far as the present appeal is concerned, we ought to make an exception from the general approach on the question of granting bail and adopt a stricter approach, primarily on two grounds which are in tandem with the principles applied in the case of Sandeep Kumar (supra) :-

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(i) The first one is that respondent No.3 is part of the police force and the allegation is that of custodial death, in which he has been implicated. In cases of this nature, having regard to the overall influence a member of a police force may wield in connection with a case against them pertaining to custodial death, a stricter view is to be taken on the question of granting bail.

(ii) Secondly, the charge is under section 302 of the Indian Penal Code and the appellant has been enlarged on bail within 1 and 1/2 years of his detention. The alleged offence is of grave and serious nature and that factor has not been properly considered by the High Court.

8. Having regard to the contents of the chargesheet, we do not think this was a fit case where he ought to have been enlarged on bail within one and a half years of his initial detention. We, accordingly, set aside the order impugned and direct respondent No.3 to surrender before the CBI Court within a period of four weeks and once respondent No.3 surrenders, he shall be taken into custody by the concerned Court."

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22. No doubt, as already pointed out, the respondent CBI has not chosen to arrest the petitioner during investigation and the petitioner was charge sheeted only for bailable offences. Moreover, as rightly pointed out by the learned Senior Counsel, the committal Court had obtained a bond under Section 91 of BNSS. But at the same time, it is pertinent to note that the obtaining of a bond under Section 91 of BNSS cannot be equated with the grant of bail.

23. The Hon'ble Supreme Court in ***Tarsem Lal Vs. Directorate of Enforcement*** reported in ***AIR 2024 SC 2512*** has specifically held that a bond furnished under Section 88 Cr.P.C., (91 of BNSS) is only an undertaking to appear before the Court on the date fixed and that an order accepting the bonds under Section 88 Cr.P.C., from the accused does not amount to grant of bail.

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24. On considering the entire facts and circumstance and more particularly prima facie material implicating the active role of the petitioner in the alleged custodial assault, the gravity of the offences disclosed from the material available on record, the position of the petitioner as a member of the police force and the apprehension regarding his capability to influence or intimidate the prosecution witnesses and tampering the evidence, this Court is of the considered view that the principles laid down by the Hon'ble Supreme Court in ***Satender Kumar Antil's case*** cannot be construed to hold that the petitioner is entitled to bail merely because he was not arrested during the course of investigation or because his custodial interrogation is no longer required at this stage.

25. As already pointed out, the learned Senior Counsel for the petitioner would contend that in view of the orders passed by this Court in Crl.O.P.(MD)Nos.4859, 5406, 5191 and 5192 of 2026, wherein this Court has held that the additional accused need not be remanded and the bonds obtained under Section 91 of BNSS were very much sufficient for their appearance and that therefore, since

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the petitioner is also similarly placed, the benefit extended to the additional accused / A.7 to A.10 can also be extended to the petitioner on the principle of parity.

26. The learned Counsel for the defacto complainant would submit that the principle of parity, by no stretch of imagination, can be applied to the case on hand and he placed reliance on the following decisions:

(i) ***Ramesh Bhavan Rathod Vs. Vishanbhai Hirabhai Makwana (Koli) and another*** (***(2021)6 SCC 230)***:

> *"26. Another aspect of the case which needs emphasis is the manner in which the High Court has applied the principle of parity. By its two orders both dated 21 December 2020, the High Court granted bail to Pravin Koli (A-10) and Kheta Parbat Koli (A-15). Parity was sought with Sidhdhrajsinh Bhagubha Vaghela (A-13) to whom bail was granted on 22 October 2020 on the ground (as the High Court recorded) that he was "assigned similar role of armed with stick (sic)". Again, bail was granted to Vanraj Koli (A-16) on the ground that he was armed with a wooden stick and on the ground that Pravin (A-10), Kheta (A-15) and Sidhdhrajsinh (A-13) who were armed with sticks had been granted bail. The High Court*

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has evidently misunderstood the central aspect of what is meant by parity. Parity while granting bail must focus upon role of the accused. Merely observing that another accused who was granted bail was armed with a similar weapon is not sufficient to determine whether a case for the grant of bail on the basis of parity has been established. In deciding the aspect of parity, the role attached to the accused, their position in relation to the incident and to the victims is of utmost importance. The High Court has proceeded on the basis of parity on a simplistic assessment as noted above, which again cannot pass muster under the law."

(ii) ***Rakesh Mittal Vs. Ajay Pal Gupta alias Sonu Chaudhary and another (2026 SCC Online SC 211)***:

"21. Further, the fact that respondent No.1 was granted bail earlier but chose to indulge in the same activities once again, resulting in the registration of multiple FIRs over the years, demonstrates that he is a career criminal and a menace to society. The impugned order reflects that his past antecedents were not even taken into consideration. Similarly, his conduct in the

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context of the pending case was not noted. Having secured bail in relation to FIR No. 229 of 2017, respondent No.1 chose to abscond, resulting in issuance of a non-bailable warrant, which also brought to light the fact that his surety was not to be found.

22. In such circumstances, the High Court ought not to have blindly extended the parity principle to him without considering the particular and distinctive features of his individual case. Given the fact that respondent No.1 has not turned over a new leaf, despite the indulgence shown by grant of bail in relation to FIR No. 229 of 2017, as evidenced by the FIRs registered against him over the years, we are of the opinion that letting him loose on society would only pose a risk and hazard to others"

27. As rightly contended by the learned Counsel for the defacto complainant and the learned Special Public Prosecutor for CBI, the principle of parity cannot be made applicable to the case on hand. Firstly, according to the prosecution, the additional accused 7 to 10 were not physically present during

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the entire occurrence, but the petitioner was allegedly physically present and actively involved in the custodial assault. Secondly, the supplementary charge-sheet attributes to A7 to A10 a supervisory role, negligence and fabrication of records, whereas the materials relied upon against the petitioner prima facie indicate his direct participation in the alleged assault.

28. It is pertinent to note that the additional accused A.7 to A.10 apprehending remand at the hands of the learned Chief Judicial Magistrate approached this Court seeking anticipatory bail and the learned Judge of this Court had specifically observed that the bonds furnished under Section 91 of BNSS were sufficient for their appearance before the committal Court and directed the committal Court not to remand them while committing the case to the Sessions Court.

29. At the same time, the offences mentioned in the final report or the supplementary final report cannot, by themselves, be determinative of the

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offences for which the accused are ultimately required to face trial. The Trial Court, is required to independently consider the entire materials placed before it and cannot mechanically proceed only on the basis of the penal provisions mentioned by the Investigating Agency in the final report or supplementary final report. If, upon such consideration, the materials available on record prima facie disclose the commission of any other or graver offence against any of the accused, it is open to the Trial Court to frame appropriate charges in accordance with law.

30. It is needless to state that, in the event of the Trial Court, upon consideration of the materials available on record, framing charges against the additional accused/A7 to A10 for offences punishable with imprisonment for more than seven years, their cases would fall under Category 'B' of the classification referred to in Satender Kumar Antil's case. In such an eventuality, the bonds executed by them under Section 91 BNSS cannot be

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treated as orders granting bail and they would be required to seek bail before the competent Court, which shall consider their applications on their own merits and in accordance with law. Therefore, the earlier orders of this Court directing that A7 to A10 need not be remanded by the committal Court cannot be understood as foreclosing the power of the Sessions Court to independently consider the materials available on record and pass appropriate orders in accordance with law. If circumstances warrant and the requirements of law are otherwise satisfied, the question of custody or bail has necessarily to be considered by the competent Court on its own merits. Therefore, the benefit extended to A7 to A10 at the stage of committal cannot, by itself, furnish a ground for extending the same benefit to the petitioner on the principle of parity.

31. Considering the above, the question of applying the principle of parity does not arise at all. On considering the peculiar facts and circumstances of the present case and the principle

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laid down by the Hon'ble Supreme Court in ***Ajay Kumar Yadav Vs. State of U.P., and others*** referred above, this Court is not inclined to enlarge the petitioner on bail. Consequently, this Court concludes that the Criminal Original Petition is liable to be dismissed.

32. In the result, the Criminal Original Petition is dismissed.

(K M S J)
28.08.2026

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TO

1. V Additional District Court, Madurai.

2. The Superintendent,
   Central Jail, Madurai.

3. The Deputy Superintendent of Police,
   CBI, SC-III,
   New Delhi.

4. The Additional Public Prosecutor,
   Madurai Bench of Madras High Court,
   Madurai.

5. The Special Public Prosecutor for CBI cases,
   Madurai Bench of Madras High Court,
   Madurai.

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K.MURALI SHANKAR,J

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PRE-Delivery Order made in

CRL OP(MD) No.15373 of 2026

28.08.2026